Number 27 *of* 1965

SUCCESSION ACT 1965

REVISED

Updated to 2 November 2017

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All Acts up to and including *Mediation Act 2017* (27/2017), enacted 2 October 2017, and all statutory instruments up to and including *Children and Family Relationships Act 2015 (Commencement) (No. 2) Order 2017* (S.I. No. 474 of 2017), made 2 November 2017, were considered in the preparation of this Revised Act.

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Number 27 *of* 1965.

SUCCESSION ACT 1965

REVISED

Updated to 2 November 2017

AN ACT TO REFORM THE LAW RELATING TO SUCCESSION TO THE PROPERTY OF DECEASED PERSONS AND, IN PARTICULAR, THE DEVOLUTION, ADMINISTRATION, TESTAMENTARY DISPOSITION AND DISTRIBUTION ON INTESTACY OF SUCH PROPERTY, AND TO PROVIDE FOR RELATED MATTERS. [22*nd December*, 1965.]

BE IT ENACTED BY THE OIREACHTAS AS FOLLOWS:—

PART I

Preliminary and General

Short title.

1.—This Act may be cited as the Succession Act, 1965.

Commencement.

2.—This Act shall come into operation on such day, not earlier than the 1st day of July, 1966, as the Minister by order appoints.

Interpretation.

3.—(1) In this Act, except where the context otherwise requires—

"administration", in relation to the estate of a deceased person, means letters of administration, whether with or without a will annexed, and whether granted for special or limited purposes;

"administrator" means a person to whom administration is granted;

['civil partner' has the meaning assigned to it by the Civil Partnership and Certain Rights and Obligations of Cohabitants Act 2010;**]**

"conveyance" includes a mortgage, charge, lease, assent, transfer, disclaimer, release and every other assurance of property by any instrument except a will;

"the court" shall be construed in accordance with section 6;

"estate" shall be construed in accordance with section 14;

"grant" means grant of representation;

"infant" means a person under the age of twenty-one years;

"an intestate" means a person who leaves no will or leaves a will but leaves undisposed of some beneficial interest in his estate, and "intestate" shall be construed accordingly;

(14) In this section—

"dwelling" means an estate or interest in a building occupied as a separate dwelling or a part, so occupied, of any building and includes any garden or portion of ground attached to and usually occupied with the dwelling or otherwise required for the amenity or convenience of the dwelling;

"household chattels" means furniture, linen, china, glass, books and other chattels of ordinary household use or ornament and also consumable stores, garden effects and domestic animals, but does not include any chattels used at the death of the deceased for business or professional purposes or money or security for money.

Appointment by personal representatives of trustees of infant's property.

[New]

57.—(1) Where an infant is entitled to any share in the estate of a deceased person and there are no trustees of such share able and willing to act, the personal representatives of the deceased may appoint a trust corporation or any two or more persons (who may include the personal representatives or any of them or a trust corporation) to be trustees of such share for the infant and may execute such assurance or take such other action as may be necessary for vesting the share in the trustee so appointed. In default of appointment the personal representatives shall be trustees for the purposes of this section.

(2) On such appointment the personal representatives, as such, shall be discharged from all further liability in respect of the property vested in the trustees so appointed.

Powers of trustees of infant's property.

[New]

58.—(1) Property vested under section 57 may be retained in its existing condition or state of investment or may be converted into money and invested in any security in which a trustee is authorised by law to invest, with power, at the discretion of the trustees, to change such investments for others so authorised.

(2) **[**...**]**

(3) A person who is sole trustee under section 57 shall be entitled to receive capital trust money.

(4) Persons who are trustees under section 57 shall be deemed to be trustees for the purposes of sections 42 and 43 of the Conveyancing Act, 1881.

(5) Without prejudice to any powers under the said sections 42 and 43, persons who are trustees under section 57 may at any time or times pay or apply the capital of any share in the estate to which the infant is entitled for the advancement or benefit of the infant in such manner as they may, in their absolute discretion, think fit and may, in particular, carry on any business in which the infant is entitled to a share.

(6) The powers conferred by subsection (5) may also be exercised by the surviving spouse **[**or civil partner**]** as trustee of any property of an infant appropriated in accordance with section 56.

Right to follow property.

[Restates existing law relating to right to follow property; as to real estate, see 1830 (c. 47) 1839 (c. 60) and 1848 (c. 87)]

59.—(1) Property which has been conveyed by personal representatives to any person (other than a purchaser) shall, so long as it remains vested in that person, or in any person claiming under him (not being a purchaser), continue to be liable to answer the debts of the deceased and any share in the estate to the extent to which it was liable when vested in the personal representatives.

(2) In the event of a sale or mortgage of the property by a person (not being a purchaser) to whom it was conveyed by the personal representatives, or by any person claiming under him (not being a purchaser), the seller or mortgagor shall continue to be personally liable for such debts and for any share in the estate to the extent to which the property was liable when vested in the personal representatives.

(3) This section applies whether the deceased died before or after the commencement of this Act.

Powers to deal with estate, etc.

[Restates, clarifies and extends to real estate existing law relating to personal estate; as to real estate, see 1859 (c. 35) ss. 14 to 18]

60.—(1) The personal representatives of a deceased owner of land may, in addition to any other powers conferred on them by this Act—

(*a*) make such leases of the land as may be reasonably necessary for the due administration of the estate of the deceased owner; or

(*b*) with the consent of the beneficiaries, or with the approval of the court, make leases of the land for such term and on such conditions as the personal representatives may think proper; or

(*c*) make, on such terms and conditions as the personal representatives may think proper, **[**a sub-lease of the land**]** with a nominal reversion, where such **[**...**]** sub-lease amounts in substance to a sale and the personal representatives have satisfied themselves that it is the most appropriate method of disposing of the land in the course of the administration of the estate;

and, where personal representatives **[**...**]** lease any land pursuant to any power conferred on them by this subsection, they may sell **[**...**]** any reversion expectant upon the determination of any such lease.

(2) The right of the personal representatives to obtain possession of any premises demised by them pursuant to the power conferred by paragraph (*a*) of subsection (1) shall be exercisable notwithstanding anything to the contrary contained in the Rent Restrictions Act, 1960.

(3) The personal representatives of a deceased person may from time to time raise money by way of mortgage or charge for the payment of expenses, debts and liabilities, and any legal right and, with the approval of all the beneficiaries being *sui juris* or the court (but not otherwise), for the erection, repair, improvement or completion of buildings, or the improvement of lands forming part of the estate of the deceased.

(4) This section shall not prejudice or affect any power or duty of personal representatives to execute any document or do any other act or thing for the purpose of completing any transaction entered into by a deceased person before his death.

[1840 (c. 105) s. 61]

(5) The personal representatives of a deceased person may distrain upon land for arrears of rent due or accruing to the deceased in like manner as the deceased might have done had he been living.

[1840 (c. 105) s. 62]

(6) Such arrears may be distrained for after the termination of the lease or tenancy as if the term or interest had not determined, if the distress is made—

(*a*) within six months after the termination of the lease or tenancy;

(*b*) during the continuance of the possession of the lessee or tenant from whom the arrears were due.

The enactments relating to distress for rent apply to any distress made pursuant to this subsection.

[New]

(7) The personal representatives may distrain for arrears of a rentcharge due or accruing to the deceased in his lifetime on the land affected or charged therewith, so long as the land remains in the possession of the person liable to pay the rentcharge or of the persons deriving title under him, and in like manner as the deceased might have done had he been living.

[Enlarges powers conferred by 1893 (c. 53) s. 21]

(8) The personal representatives of a deceased person may—

(*a*) accept any property before the time at which it is transferable or payable;

[Share of issue where no surviving spouse or surviving civil partner.

67B.— (1) If an intestate dies leaving issue and no spouse or civil partner, the estate shall be distributed among the issue in accordance with subsection (2).

(2) If all the issue are in equal degree of relationship to the deceased the distribution shall be in equal shares among them; if they are not, it shall be *per stirpes*.**]**

Shares of parents.

[New. See 1695 (c. 6) ss. 3, 8]

68.—If an intestate dies leaving neither spouse **[**nor civil partner**]** nor issue, his estate shall be distributed between his parents in equal shares if both survive the intestate, but, if only one parent survives, that parent shall take the whole estate.

Shares of brothers and sisters and their children.

[See 1695 (c. 6) ss. 2, 3]

69.—(1) If an intestate dies leaving neither spouse **[**nor civil partner**]** nor issue nor parent, his estate shall be distributed between his brothers and sisters in equal shares, and, if any brother or sister does not survive the intestate, the surviving children of the deceased brother or sister shall, where any other brother or sister of the deceased survives him, take in equal shares the share that their parent would have taken if he or she had survived the intestate.

(2) If an intestate dies leaving neither spouse **[**nor civil partner**]** nor issue nor parent nor brother nor sister, his estate shall be distributed in equal shares among the children of his brothers and sisters.

Shares of next-of-kin.

[See 1695 (c. 6) ss. 2, 3]

70.—(1) If an intestate dies leaving neither spouse **[**nor civil partner**]** nor issue nor parent nor brother nor sister nor children of any deceased brother or sister, his estate shall, subject to the succeeding provisions of this Part, be distributed in equal shares among his next-of-kin.

(2) Representation of next-of-kin shall not be admitted amongst collaterals except in the case of children of brothers and sisters of the intestate where any other brother or sister of the intestate survives him.

Ascertainment of next-of-kin.

[New]

71.—(1) Subject to the rights of representation mentioned in subsection (2) of section 70, the person or persons who, at the date of the death of the intestate, stand nearest in blood relationship to him shall be taken to be his next-of-kin.

(2) Degrees of blood relationship of a direct lineal ancestor shall be computed by counting upwards from the intestate to that ancestor, and degrees of blood relationship of any other relative shall be ascertained by counting upwards from the intestate to the nearest ancestor common to the intestate and that relative, and then downward from that ancestor to the relative; but, where a direct lineal ancestor and any other relative are so ascertained to be within the same degree of blood relationship to the intestate, the other relative shall be preferred to the exclusion of the direct lineal ancestor.

Half-blood.

[New as regards real estate]

72.—Relatives of the half-blood shall be treated as, and shall succeed equally with, relatives of the whole blood in the same degree.

[Distribution of disclaimed estate.

72A.—Where the estate, or part of the estate, as to which a person dies intestate is disclaimed after the passing of the Family Law (Miscellaneous Provisions) Act, 1997 (otherwise than under section 73 of this Act), the estate or part, as the case may be, shall be distributed in accordance with this Part—

(*a*) as if the person disclaiming had died immediately before the death of the intestate, and

(*b*) if that person is not **[**the spouse, civil partner or a direct lineal ancestor**]** of the intestate, as if that person had died without leaving issue.**]**

Devise of estate tail not to lapse where inheritable issue survives.

[1837 (c. 26) s. 32]

97.—**[**...**]**

Gifts to children or other issue who leave issue living at testator's death.

[1837 (c. 26) s. 33 extended to cover appointments under special powers and class gifts]

98.—Where a person, being a child or other issue of the testator to whom any property is given (whether by a devise or bequest or by the exercise by will of any power of appointment, and whether as a gift to that person as an individual or as a member of a class) for any estate or interest not determinable at or before the death of that person, dies in the lifetime of the testator leaving issue, and any such issue of that person is living at the time of the death of the testator, the gift shall not lapse, but shall take effect as if the death of that person had happened immediately after the death of the testator, unless a contrary intention appears from the will.

Interpretation of devise or bequest in case of doubt.

[New]

99.—If the purport of a devise or bequest admits of more than one interpretation, then, in case of doubt, the interpretation according to which the devise or bequest will be operative shall be preferred.

Restriction on executory limitations.

[See 1882 (c. 39) s. 10]

100.—Where a person is entitled under a will to—

(*a*) land for an estate in fee simple or for any lesser estate or interest not being an estate tail, or

(*b*) any interest in other property,

with an executory limitation over in default or failure of any of his issue, whether within a specified period of time or not, that executory limitation shall be or become void and incapable of taking effect, if and as soon as there is living any issue of the class in default or failure of which the limitation over was to take effect.

PART VIII

Conflict of Laws relating to Testamentary Dispositions

"Testamentary disposition".

101.—In this Part, "testamentary disposition" means any will or other testamentary instrument or act.

Validity as regards form.

[Hague Convention, Arts. 1, 2. As to existing law, see 1861 (c. 114) ss. 1, 2]

102.—(1) A testamentary disposition shall be valid as regards form if its form complies with the internal law—

(*a*) of the place where the testator made it, or

(*b*) of a nationality possessed by the testator, either at the time when he made the disposition, or at the time of his death, or

(*c*) of a place in which the testator had his domicile either at the time when he made the disposition, or at the time of his death, or

(*d*) of the place in which the testator had his habitual residence either at the time when he made the disposition, or at the time of his death, or

(*e*) so far as immovables are concerned, of the place where they are situated.

(2) Without prejudice to subsection (1), a testamentary disposition revoking an earlier testamentary disposition shall also be valid as regards form if it complies with any one of the laws according to the terms of which, under that subsection, the testamentary disposition that has been revoked was valid.

(3) For the purposes of this Part, if a national law consists of a non-unified system, the law to be applied shall be determined by the rules in force in that system and, failing any such rules, by the most real connexion which the testator had with any one of the various laws within that system.

(4) The determination of whether or not the testator had his domicile in a particular place shall be governed by the law of that place.

Dispositions made on board vessel or aircraft.

[New]

103.—Without prejudice to section 102, a testamentary disposition made on board a vessel or aircraft shall also be valid as regards form if its form complies with the internal law of the place with which, having regard to its registration (if any) and any other relevant circumstances, the vessel or aircraft may be taken to have had the most real connexion.

Exercise of power of appointment.

[New]

104.—(1) Without prejudice to section 102, a testamentary disposition shall also be valid as regards form so far as it exercises a power of appointment, if its form complies with the law governing the essential validity of the power.

(2) A testamentary disposition so far as it exercises a power of appointment shall not be treated as invalid as regards form by reason only that its form is not in accordance with any formal requirements contained in the instrument creating the power.

Joint dispositions.

[Hague Convention, Art. 4]

105.—This Part shall also apply to the form of testamentary dispositions made by two or more persons in one document.

Effect of restrictions on capacity.

[Hague Convention, Art. 5]

106.—(1) For the purposes of this Part, any provision of law which limits the permitted forms of testamentary dispositions by reference to the age, nationality or other personal conditions of the testator shall be deemed to pertain to matters of form.

(2) The same rule shall apply to the qualifications that must be possessed by witnesses required for the validity of a testamentary disposition and to the provisions of section 82.

Construction of testamentary disposition.

[1861 (c. 114) s. 3]
[New]

107.—(1) The construction of a testamentary disposition shall not be altered by reason of any change in the testator's domicile after the making of the disposition.

(2) In determining whether or not a testamentary disposition complies with a particular law, regard shall be had to the requirements of that law at the time of making the disposition, but this shall not prevent account being taken of an alteration of law affecting testamentary dispositions made at that time if the alteration enables the disposition to be treated as valid.

Effect of testamentary disposition under Part VII.

[New]

108.—A testamentary disposition which under this Part is valid as regards form shall have the same effect as if it were a will executed in compliance with Part VII.

PART IX

Legal Right of Testator's Spouse and Provision for Children

Application of Part IX.

[New]

109.—(1) Where, after the commencement of this Act, a person dies wholly or partly testate leaving a spouse **[**or civil partner**]** or children or both spouse **[**or civil partner**]** and children, the provisions of this Part shall have effect.

Limitation period in case of disability.

[New]

127.—Section 49 of the Statute of Limitations, 1957, which extends the periods of limitation fixed by that Act where the person to whom a right of action accrued was under a disability, shall have effect in relation to an action in respect of a claim to the estate of a deceased person or to any share in such estate, whether under a will, on intestacy or as a legal right, as if the period of three years were substituted for the period of six years mentioned in subsection (1) of that section.

PART XII

PROVISIONS RELATING TO PROBATE OFFICE AND DISTRICT PROBATE REGISTRIES

Assistant Probate Officer.

[1959 (No. 8) s. 25.

128.—(1) In this section "the Assistant Probate Officer" means the officer employed in the Probate Office who is next in rank to the Probate Officer and is qualified to be appointed to be Probate Officer.

(2) The powers, authorities, duties and functions exercisable or performable by the Probate Officer may, subject to any restrictions which the President of the High Court may think fit to impose, be exercised or performed by the Assistant Probate Officer.

District probate registries.

[1857 (c. 79) ss. 16, 17; 1926 (No. 27) s. 56]

129.—(1) There shall be district probate registries for such districts and at such places as the Minister may by order appoint.

(2) The Minister may by order—

(*a*) alter the district served by a district probate registry;

(*b*) add to or reduce the number of such districts;

(*c*) direct that any district probate registry may be at such place within the district as he thinks fit;

(*d*) close any district probate registry.

(3) Whenever the Minister makes an order closing a district probate registry, the Minister may by that order make provision for enabling applications for representation, in cases in which the deceased, at the time of his death, had a fixed place of abode within the district previously served by that registry, to be lodged with the county registrar for the area in which that place of abode was situate and for the transmission of the applications by the county registrar to the Probate Office and the transmission of the grants (if and when issued) from the Probate Office to the said county registrar for delivery to the person entitled thereto.

(4) Until provision is otherwise made under this section, the district probate registries existing at the commencement of this Act shall continue to function for the districts and at the places theretofore appointed by law.

Fees to be taken at district probate registries.

[1959 (No. 8) s. 24 (1)]

S.I. No. 251 of 1956.

130.—(1) In this section, "the Act of 1936" means the Courts of Justice Act, 1936.

(2) For the purposes of section 65 (which empowers the Minister to prescribe court fees) of the Act of 1936, every district probate registry shall be deemed to be an office established by the Court Officers Act, 1926.

(3) The Supreme Court and High Court (Fees) Order, 1956, as modified by section 24 of the Administration of Estates Act, 1959, shall, notwithstanding the repeal of that Act by this Act, continue to apply in respect of each district probate registry and each district probate registrar.